



*every cause needs a website*

# CLIENT ENGAGEMENT AND ATTRIBUTION TERMS

# One Page Summary

## Who p4p is:

p4p is an independent, third party website development team. p4p is not part of the client organization. Individual overlap between one p4p member and the client does not make p4p's team the client's staff, officers, or volunteers.

## Roles

The client provides branding, content, goals, direction., and feedback. p4p designs and develops the website itself. Both roles are real and valued, but they are different roles.

## Attribution

When the client publicly states who built the website, that statement must be accurate. Acceptable examples include “Designed and Developed by p4p for [client]” or “Developed by p4p in collaboration with [client].” The client may lead with its own launch announcement and is required to mention p4p- and may not claim the website was built solely by themselves or staff of that such organization.

## Ownership

The client owns its content, logo, photos, name, and trademarks. p4p owns its reusable code, templates, technical processes, and design work, and may display complete projects in its portfolio without asking for permission from clients.

## Maintenance

Hosting, updates, and technical support are separate from the initial build and are covered under a separate maintenance arrangement.

## If something goes wrong

If a client materially misrepresented who built the website, p4p may pause future maintenance and updates while the parties work toward a resolution. p4p will not delete or take down a live client website as a first response unless it turns to that.

## When these terms apply

These terms take effect only after a client has clearly accepted a pitch to work with p4p and their personal org. An acceptance of this can be an explicit email, or even a text confirming this.

# Full Terms

## 1. Acceptance and Effective Date

These terms become binding on a client only when that client has agreed to work with p4p. This document is publicly available on the p4p website, so we expect our clients to verify all documentation provided by p4p prior to agreeing with working along p4p. The following accepted methods of acceptance are listed:

1. Sending a text message
2. Any sort of email, agreeing with the pitch
3. Verbal agreement
4. Any implicit agreement or nod

These terms are immediately active after any of those 4 acceptance methods above, have been met. Work performed, or communications exchanged, before acceptance is not governed by this document.

## 2. Relationship of the Parties

p4p is an independent, third party development organization. Unless a separate written agreement between p4p and the client states otherwise, p4p is not part of the clients organization and is not the client's employee, partner, or agent for any purpose beyond the scope of the engagement.

p4p team members do not become the clients officers, directors, volunteers, staff, or internal workers simply by virtue of designing or developing a website for the client. This is true even if one individual happens to have a separate personal or professional relationship with the client's organization. That overlap does not extend to p4p's team as a whole, and it does not change p4p's status as an independent developer of the work, as we see ourselves as a singular entity and any other organization as a separate entity.

## 3. Division of Roles

The parties role in a typical engagement are as follows:

- The client provides branding materials written content, organization, goals, creative direction, review, and feedback.
- p4p designs and develops the website itself, including its technical structure, code, and visual implementation, based on the client's direction and content.

Both contributions are genuine and valuable. Describing the division of labor accurately is not intended to diminish either party's role- it is intended to ensure that public descriptions of "who built the website" reflect what actually happened.

## 4. Public Attribution

When p4p designs and/or designs a website for a client, the following attribution principles apply to any public statement the client makes describing who built the website:

- If the client publicly states who built the website, that statement must be factually accurate. Acceptable phrasing includes, for example: “Designed and developed by p4p for [Client]” or “Developed by p4p in collaboration with [Client].” Substantially similar accurate language is also acceptable.
- The client is not required to mention p4p in a client-first launch announcement, and may choose to center its own team, mission, or story in that announcement.
- However, the client may not publicly and falsely claim that the website was built solely by the client's own internal officers, volunteers, or staff, or by a different organization, when that is not true.
- A client's general social-media preferences, house style, or desire for a particular tone do not make an inaccurate description of who designed or developed the website accurate. Preference does not override fact.
- A story repost, a general shout-out, tagging p4p in unrelated content, or giving p4p permission to post about the project on its own accounts does not substitute for accurate attribution if the client itself publicly identifies who created the website. Exposure is not the same as accurate credit.

These principles apply to the specific announcement(s) in which the client identifies who built the website and not to every unrelated public communication the client makes.

## 5. Portfolio and Credit

p4p retains the right to describe and display completed projects in its own portfolio, case studies, and marketing materials, including identifying the client by name, unless the parties agree otherwise in writing (for example, where confidentiality is required). This right exists independently of how the client chooses to describe the project publicly.

## 6. Ownership

Ownership of project materials is divided as follows:

- The client retains ownership of its own content, logo, photographs, organizational name, and trademarks, and of any materials it provided to p4p for use in the project.
- p4p retains ownership of its reusable code libraries, templates, design systems, and technical processes that are not unique to the client's specific content or brand.
- Ownership of the finished, client-specific website (as distinct from p4p's underlying reusable tools and templates) will be addressed in the project agreement for each engagement. Where the project agreement is silent, the client owns the client-specific content and branding embedded in the site, and p4p retains ownership of its underlying code frameworks, templates, and technical processes, with a license granted to the client to use the finished website for its intended purpose.

This section is a general framework. Specific ownership and licensing terms for a given project should be confirmed in that project's signed agreement.

## 7. Maintenance, Hosting, and Support.

Initial website delivery is distinct from ongoing maintenance, hosting, updates, and technical support. Unless a project agreement states otherwise, maintenance and support are not included automatically and must be arranged

separately, with their own scope, cost, and terms.

## 8. Response to Misattribution

If a client materially misattributes p4p's design or development work for example, by publicly and falsely claiming the website was built solely by internal officers, volunteers, or staff, p4p may pause future maintenance, updates, and new work for that client while the parties work in good faith toward a resolution, such as a correction or an agreed public clarification.

p4p will not delete, disable, or take down a live client website as a first response to a misattribution concern. Any such step would only be considered as a last resort, after good-faith efforts at resolution under Section 9 have been exhausted, and would be addressed separately and explicitly in the applicable project agreement.

## 9. Dispute Resolution

If a disagreement arises under these terms, including a disagreement about attribution, the parties agree to the following process:

- Direct discussion. The party with the concern will first raise it directly and in writing with the other party, describing the specific issue and the requested resolution.
- Good-faith resolution period. Both parties will make a good-faith effort to resolve the issue within a reasonable time (for example, 10 business days, unless the parties agree to a different timeframe), which may include a correction, a clarifying public statement, or another mutually acceptable remedy.
- Escalation. If the issue is not resolved through direct discussion, either party may propose mediation or another neutral third-party process before pursuing any other remedy available under the project agreement or applicable law.

Nothing in this section limits either party's rights to seek legal remedies where good-faith resolution is not possible.

## 10. Project Handoff

At the conclusion of an engagement, or upon termination of the maintenance relationship, p4p will provide the client with a reasonable handoff, which may include access credentials, exported content, and documentation reasonably necessary for the client (or a successor developer) to maintain the website going forward, consistent with what was agreed in the project agreement and subject to any outstanding payment obligations.

# Thank You

- p4p